

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF VENTURA

Tentative Ruling

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**2025CLPA054683: FRANCISCO PEREZ vs JUAN HUMBERTO ARBAIZA, et al.**  
**09/09/2026 in Department 41**  
**Demurrer and Motion to Strike**

Below is the Court's tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

**If you wish to submit on the Court's tentative decision without appearing, please send an email to the following address by 8:00 a.m. on the date of the hearing with counsel for all parties copied on your email: [courtroom41@ventura.courts.ca.gov](mailto:courtroom41@ventura.courts.ca.gov).** Please state on the subject line of your email: "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative decision is subject to change.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the Court. A "notice of ruling" in lieu of this procedure is not authorized.

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The Court intends to rule as follows:

The Court **OVERRULES** the demurrer to the entire complaint on the ground of abatement, as well as the first and second causes of action.

The Court **OVERRULES** the demurrer to the third cause of action.

The Court **DENIES** the motion to strike.

At the outset, the Court finds that Defendants Juan Humberto Arbaiza and Patricia Arbaiza's demurrer and motion to strike were not timely filed. (See Code Civ. Proc., §§ 412.20, 430.40, subd. (a), 435, subd. (b)(1).) Further, it is unclear whether sufficient meet and confer occurred here. (Code Civ. Proc., §§ 430.40, 435.5.) Nevertheless, the Court will consider the substantive matters presented by the parties.

Here, the demurrer and motion to strike lack merit.

A plea of abatement requires a showing that there is another action *pending* between the same parties on the same cause of action. (Code Civ. Proc., § 430.10, subd. (c) [emphasis added]; *People ex rel Garamendi v. American Autoplan, Inc.* (1993) 20 Cal.App.4th 760, 770 ["*Garamendi*"].) If the two actions involve substantially the same controversy between the same

parties, the court must abate—but not dismiss—the second action pending the outcome of the first action. (*Garamendi, supra*, 20 Cal.App.4th at p. 771.) The period of abatement ends when the first action becomes final. (*Barragan v. Banco BCH* (1986) 188 Cal.App.3d 283, 298.) Here, the judicially noticed documents show that no other action is ***pending***. Accordingly, Defendants Juan Humberto Arbaiza and Patricia Arbaiza’s demurrer to the entire complaint on the ground of abatement is OVERRULED.

The demurrer to the First and Second Causes of Action on the ground of abatement is OVERRULED for the same reason as above.

The demurrer to the Third Cause of Action is OVERRULED. A demurrer does not lie to a part of a cause of action. (*Hilliard v. A.H. Robins Co.* (1983) 148 Cal.App.3d 374, 391.) The demurrer to this claim only addresses the allegations for punitive damages. The demurrer does not discuss the elements of a cause of action for willful misconduct or why the claim itself is insufficiently alleged. (See Demurrer, pp. 6-7.)

Defendant’s motion to the punitive damages allegations in the Complaint is DENIED. (Civ. Code, § 3294, subd. (b).) The allegations in the third cause of action show conduct beyond simple distraction or negligence while driving. Plaintiff alleges a hostile state of mind (“angry”) and an active, intentional pursuit of another motorist to confront or intimidate. Paragraph 29 of the Complaint links the angry pursuit directly to a traffic violation, asserting a conscious choice to run the stop sign while blinded by rage and aggressively chasing another vehicle. While engaged in that pursuit, Defendant allegedly collided with Plaintiff’s vehicle and caused damages. The Court finds that the allegations are sufficient to state a claim for punitive damages allegations.